

21STCV28812 21STCV28812

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-06-26

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Case Number: 21STCV28812 Hearing Date: June 26, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 10:52 AM on June 25, 2026.

Notice

of intent to appear is REQUIRED pursuant to California Rule of Court

3.1308(a)(1). The Court does not desire

oral argument on the motion addressed herein.

As

required by Rule 3.1308(a)(1), any party seeking oral argument must notify ALL

OTHER PARTIES and the staff of Department 734 by 4:00 p.m. on June 25, 2026.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to

Department 734 may delay the Court's receipt of notice, so telephonic notice to

213-830-0776 should be reserved for situations where parties are unable to give

notice by email.

Per

Rule of Court 3.1308, the Court may not entertain oral argument if notice of

intention to appear is not given.

Plaintiffs allege that Defendants

misclassified Plaintiffs as independent contractors and violated wage and hour laws.

Defendants allegedly fraudulently induced Plaintiffs into signing contracts Defendants

never intended to fulfill. When Plaintiffs complained about the wage and hour laws

and unfulfilled employment terms, Defendants wrongfully terminated every one of

its non-Caucasian Plaintiffs.

Plaintiffs/Judgment Creditors Marissa

Land, Jamil Houston, Ayesha Khan, Lucas Nyabero, Astrid Stuckelberger and Firas
Abrams move to compel further responses to post-judgment interrogatories propounded
upon judgment debtor Mark Hinds, and request monetary sanctions.

TENTATIVE RULING

Plaintiffs/Judgment Creditors Marissa

Land, Jamil Houston, Ayesha Khan, Lucas Nyabero, Astrid Stuckelberger and Firas
Abrams's motion to compel further responses to Post-Judgment Interrogatories Nos.
1 – 19 propounded upon judgment debtor Mark Hinds is GRANTED. Further responses
are due within 20 days.

Judgment

Creditors' requests for sanctions against Judgment Debtor Mark Hinds only is GRANTED
in the reduced amount of \$1,950. Sanctions are to be paid to Judgment Creditors'
counsel within 20 days.

ANALYSIS

Motion To Compel Further Responses To Interrogatories

Discussion

Regarding written interrogatories to
a judgment debtor, Code Civ. Proc. § 708.020(c) provides: "Interrogatories served
pursuant to this section may be enforced, to the extent practicable, in the same
manner as interrogatories in a civil action."

On November 6, 2023, Judgment Creditors
obtained a judgment against Hinds and other defendants in the amount of \$137,500.00,
which remains unsatisfied. (Jadhavji Decl. ¶ 2.) On December 17, 2025, Judgment
Creditors served Post-Judgment Interrogatories pursuant to Code of Civil Procedure
section 708.020 to identify Hinds' assets for purposes of enforcing the judgment.
(Jadhavji Decl. ¶ 3, Ex. A.) On January 21, 2026—the date responses were due—Hinds
served responses consisting entirely of objections. (Jadhavji Decl. ¶ 5, Ex. B.)
Hinds did not provide a single substantive response to any interrogatory. (Id.)

Section 708.020 requires that responses

“shall be made under oath.” (Code Civ. Proc. § 708.020, subd. (a).) Hinds’ responses contain no verification. Unverified responses are tantamount to no responses at all. (Appleton v. Superior Court (1988) 206 Cal.App.3d 632, 636.)

However, objections need not be verified
(Food 4 Less Supermarkets, Inc. v. Superior Court (1995) 40 Cal.App.4th 651, 657 – 58.) Because the objections were timely filed, they were properly preserved.

The Court addresses
the interrogatories set forth in the separate statement:

¿ Post-Judgment
Interrogatories Nos. 1 – 19.

GRANTED.

Judgment
Debtor did not provide any substantive responses.

The objections
as to the form of the interrogatory are OVERRULED as without merit for the reasons argued by Judgment Creditor in the separate statement.

“Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter. . . .”
(Code Civ. Proc., § 2017.010.)

As for the privacy
objection, the right of a judgment creditor to obtain information to aid in the enforcement of judgment is a valid significant interest which outweighs the privacy interest in financial information:

The constitutional right of privacy does not provide absolute protection ““but may yield in the furtherance of compelling state interests.” (Citation omitted) “[C]ourts must balance the right of civil litigants to discover relevant facts against the privacy interests of persons subject to discovery.” (Citation omitted.) “In determining whether disclosure is required, the court must indulge in a ‘careful balancing’ of the right of a civil litigant to discover relevant facts, on the one hand, and the right of the third parties to maintain reasonable privacy regarding their sensitive personal affairs, on the other. [Citation.] The court

must consider the purpose of the information sought, the effect that disclosure [*755] will have on the affected persons and parties, the nature of the objections urged by the party resisting disclosure and availability of alternative, less intrusive means for obtaining the requested information. [Citation.] Based on an application of these factors, the more sensitive the nature of the personal information that is sought to be discovered, the more substantial the showing of the need for the discovery that will be required before disclosure will be permitted. [Citations.]" (Citation omitted.)

Obtaining information to collect on a judgment is "a valid significant interest." (Citation omitted.) Having been assigned a substantial money judgment against SCC, Western has a right to discover facts about the nature and location of assets to make that judgment more than a scrap of paper. The information sought by Western's discovery is financial in nature and a protective order could be issued, if necessary, to safeguard privacy rights of third parties. SCC has not identified other sources from which the information sought by the discovery can be obtained.

(SCC Acquisitions, Inc. v. Superior Court (2015) 243 Cal.App.4th 741, 754-55.)

The Court takes note that Judgment Creditors' counsel attributes the following citation to Maldonado v. Superior Court (2002) 94 Cal.App.4th 1390, 1396: "The debtor's right of privacy must yield to the creditor's right to enforce the judgment." This language does not appear at page 1396, nor anywhere, in Maldonado, but Judgment Creditor presented it as a citation at Page 4:14-16 of the memorandum of points and authorities. As the Court of Appeal has stated:

"Business and Professions Code, section 6068, subdivision (d) states that it is the duty of an attorney 'to employ ... those means only as are consistent with truth, and never to seek to mislead the judge or any judicial officer by an artifice or false statement of fact or law.' The Rules of Professional Conduct prohibit an attorney from 'knowingly mak[ing] a false statement of fact or law to a tribunal or fail[ing] to correct a false statement of material fact or law previously made to the tribunal by the lawyer.' (Rules Prof. Conduct, rule 3.3(a)(1), fn. omitted.) These rules also prohibit an attorney from 'knowingly misquot[ing] to a tribunal the language of a book, statute, decision, or other authority.' (Id. at rule 3.3(a)(2), fn. omitted.)"

(People v. Alvarez (2025) 114 Cal.App.5th 1115, 1118-19.) The court in Alvarez noted that there is nothing inherently wrong with the use of AI in a law practice, but "attorneys must check every citation to make sure the case exists and the citations are correct." (Id. at 1119.)

The motion to compel further responses to Post-Judgment Interrogatories Nos. 1 – 19 is GRANTED. Further responses are due within 20 days.

Sanctions

Judgment Creditors'

requests for sanctions against Judgment Debtor Mark Hinds only^[1] is

GRANTED in the reduced amount of \$1,950. (3 total hours at \$650/hour—Alishan A.

Jadhavji Decl., ¶ 6.) Sanctions are to be paid to Judgment Creditors' counsel within

20 days.

^[1] There is

no proof of service upon counsel Buchalter LLP regarding this motion and request for sanctions.